

HOUSE BILL 1939

By Johnson

AN ACT to amend Tennessee Code Annotated, Section 37-5-132, relative to the department of children's services caseload management.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-5-132, is amended by deleting the section and substituting:

(a) The department shall maintain staffing levels of case managers so that each region has enough case managers to ensure that caseloads do not exceed:

(1) Twelve (12) active cases involving no more than twelve (12) families relating to initial assessments, including investigations of an allegation of child abuse or neglect; or

(2) Twenty (20) children monitored and supervised in active cases relating to ongoing services.

(b) The department shall comply with the maximum caseload limits described in subsection (a).

(c) The department shall resolve each active case within twelve (12) months of the opening of the case. If the department does not resolve an active case within twelve (12) months, then the case must be brought before the juvenile court for a status review hearing to determine what specific actions are necessary to resolve the case. At the status review hearing, the court must issue specific and clear instructions regarding actions that must be completed by the parties for a timely resolution of the case.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.